

- May 5, 2026: Defendant's General Counsel, Paul Burghardt, emailed Plaintiff's counsel explaining the lack of notice and requesting a stipulation to set aside the default.
- May 13, 2026: Defendant formally retained Ropers Majeski PC as counsel.
- May 15–27, 2026: Defense counsel made multiple attempts via email and telephone to stipulate to set aside the default.
- May 27, 2026: Plaintiff's counsel responded, refusing to stipulate to set aside the default.
- June 2, 2026: Defendant filed the present Motion to Set Aside Default

The Court finds that Defendant has met its burden under Code of Civil Procedure section 473.5, which allows relief when service has not resulted in "actual notice to a party in time to defend the action." CCP § 473.5(a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action." (CCP § 473.5(a).) "This section is designed to provide relief where there has been *proper* service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend." (Weil & Brown, *Civil Procedure Before Trial* (The Rutter Group 2022) ¶ 5:420, p. 5-1222 [italics in original]. Defendant provided sworn testimony that it has no internal records of being served in January 2026 and only became aware of the litigation upon receipt of the Statement of Damages in April 2026. (Burghart Decl. ¶¶ 2-3).

The evidence indicates that Defendant's lack of notice was not caused by avoidance of service or inexcusable neglect. Defendant was not avoiding service, as evidenced by its successful receipt of later documents at its registered agent. Defendant acted promptly and proactively to resolve the default once actual notice was acquired.

The Court further notes that Plaintiff has filed no opposition to this motion. Under California law, a failure to oppose may be considered by the Court as an admission that the motion is meritorious. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20. By failing to brief the issue, any arguments against setting aside the default are deemed abandoned. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20. By failing to brief the issue, any arguments against setting aside the default are deemed abandoned.

California law strongly favors adjudicating controversies on their merits rather than by default. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547. Because Defendant moved promptly for relief and there is no showing of prejudice to the Plaintiff, "very slight evidence" is required to justify setting aside the default.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2602366	HAYDEN VS WAL-MART ASSOCIATES	DEMURRER ON COMPLAINT FOR OTHER EMPLOYMENT OF ROBERT HAYDEN BY WAL-MART ASSOCIATES, WAL-MART

Tentative Ruling: Defendants Wal-Mart Associates, Inc. and Walmart, Inc.'s demurrer to the seventh, sixteenth, and eighteenth causes of action is overruled; as to the fourth, fifth, eighth, ninth, eleventh, twelfth, thirteenth, fourteenth, and fifteenth causes of action, it is sustained with leave to amend within 20 days.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Id.*)

Fourth Cause of Action – California Family Rights Act

Under Government Code § 12945.2(a), it is unlawful for an employer not to provide up to 12 workweeks of family care and medical leave for a qualified employee. “Family care and medical leave” includes “[l]eave because of an employee’s own serious health condition that makes the employee unable to perform the functions of the position of that employee, except for leave taken for disability on account of pregnancy, childbirth, or related medical conditions.” (Gov. Code § 12945.2(c)(3).)

Wal-Mart argues this cause of action fails because Plaintiff “...does not plead that he had a right to take CFRA leave.” (Demurrer, p. 3:26-4:1.) The complaint states that Plaintiff “was eligible for CFRA protected leave in November 2024 in both hours worked and time employed by Defendants. Defendants were covered by the CFRA because they employ at least five employees.” (Complaint, ¶ 73.) While there are allegations regarding requests for accommodations for various injuries incurred while working, there are no allegations that Plaintiff requested medical leave or was denied same.

The demurrer to the fourth cause of action is sustained.

Fifth Cause of Action – Race Discrimination

Under California law, to establish a discrimination claim under FEHA, a plaintiff must show: (1) they belong to a protected class; (2) they were qualified for the position; (3) they suffered an adverse employment action; and (4) there are circumstances suggesting that the adverse action was taken because of the plaintiff’s protected status. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

Here, the complaint states that on 5/15/2025, Wal-Mart terminated Plaintiff. (Complaint, ¶ 42.) There are no allegations that tie the termination, or any other adverse employment action, to the racial comments made by various employees to Plaintiff.

The demurrer to the fifth cause of action is sustained.

Seventh Cause of Action – Racial Harassment

“To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) because of sex or gender, and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment. [Citation.]” (*Wawrzewski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 692.)

Wal-Mart argues the complaint fails to allege sufficient circumstances to establish a severe or persuasive environment. The complaint includes allegation of uses of the n-word, while also generally referencing other racist comments including “boy” and being called a “faggot”. (Complaint, ¶¶ 15, 19, and 23-24.) However, case law holds that even a single use of a racial epithet by a supervisor in the presence of subordinates can be actionable. (*Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 36.) Wal-Mart’s citation to an unreported, federal case in support of this argument is improper. [Counsel is admonished, unreported cases are not citable]

and federal cases are only persuasive in the absence of state-authority][Demurrer, p. 6:28-7:3.) [Counsel is admonished, unreported cases are not citable and federal cases are only persuasive in the absence of state-authority] The allegations are thus sufficient to survive demurrer.

Eighth and Ninth Causes of Action – Retaliation

The elements of a claim for retaliation under FEHA are “(1) the employee’s engagement in a protected activity, i.e. opposing any practices forbidden under this part; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation.” (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 713.)

The complaint has two causes of action for retaliation under Government Code § 12940(m)(2) and 12940(h). Subdivision (h) prevents retaliation in response to filing a complaint and subdivision (m)(2) prevents retaliation for requesting an accommodation. While the complaint alleges Plaintiff made complaints regarding racial discrimination and workplace safety, as well as various requests for accommodations due to medical issues, the complaint does not tie any of these issues to a specific adverse employment action.

The demurrer to the eighth and ninth causes of action is sustained.

Eleventh Cause of Action – Wrongful Termination in Violation of Public Policy

For a wrongful termination in violation of public policy claim, the plaintiff must demonstrate: (1) an employer-employee relationship; (2) the termination of plaintiff’s employment was a violation of public policy; and (3) the termination caused plaintiff’s damage. (See *Holmes v. General Dynamics Corp.* (1993) 17 Cal.App.4th 1418, 1426, n.8.) Particularly, the plaintiff must establish that he was terminated in violation of a policy that is: (1) based in either constitutional or statutory provisions; (2) public, in the sense that it inures a benefit to the public rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) substantial and fundamental. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894.)

As with the other causes of action, while the complaint identifies various public policies Wal-Mart is alleged to have violated, there are no factual allegations that tie those violations to Plaintiff’s termination. (Complaint, ¶ 139.)

The demurrer to the eleventh cause of action is sustained.

Twelfth through Fifteenth Causes of Action – Labor Code Violations

The twelfth through fifteenth causes of action allege violations of Labor Code §§ 1102.5, 6310, 98.6, and 232.5 respectively. Each of these causes of action allege versions of retaliation for complaints regarding harassment, discrimination, unsafe working conditions, and requests for accommodations. Statutory causes of action must be alleged with particularity. (*Gates v. Superior Court* (1995) 32 Cal.App.4th 481, 493-494.) The issue is again the lack of specific factual allegations that tie the actions taken by Plaintiff to termination or any other adverse employment action.

The demurrer to the twelfth, thirteenth, fourteenth, and fifteenth cause of action is sustained.

Sixteenth Cause of Action – PAGA

Wal-Mart argues the PAGA cause of action fails because Plaintiff fails to identify which specific Labor Code sections Wal-Mart is alleged to have violated. Wal-Mart also argues the complaint contains allegations not raised in the LWDA notice, which are thus waived.

The Private Attorney General Act (“PAGA”) (Labor Code §2699) permits employees to recover civil penalties for violation of the Labor Code. As explained by *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 82:

A PAGA claim is legally and conceptually different from an employee's own suit for damages and statutory penalties. An employee suing under PAGA “does so as the proxy or agent of the state's labor law enforcement agencies.” [Citation.] Every PAGA claim is “a dispute between an employer and the state.” [Citations.] Moreover, the civil penalties a PAGA plaintiff may recover on the state's behalf are distinct from the statutory damages or penalties that may be available to employees suing for individual violations. [Citation.] Relief under PAGA is designed primarily to benefit the general public, not the party bringing the action. [Citations.] “A PAGA representative action is therefore a type of qui tam action,” conforming to all “traditional criteria, except that a portion of the penalty goes not only to the citizen bringing the suit but to all employees affected by the Labor Code violation.” [Citation.] The “government entity on whose behalf the plaintiff files suit is always the real party in interest.”

A plaintiff must allege that she personally suffered a violation of the Labor Code by the defendant employer. (*Rodriguez v. Lawrence Equip., Inc.* (2024) 106 Cal.App.5th 645, 656.) Here, the complaint incorporates by reference numerous Labor Code violations, including the seventeenth cause of action which is not challenged via this demurrer.

Regarding the LWDA notice, it is not attached to the complaint nor does Wal-Mart request judicial notice of same. Wal-Mart merely attaches what is purported to be the LWDA notice to an attorney declaration. This goes outside the four corners of the complaint and the argument is rejected.

Notwithstanding, this argument is not well taken at the pleading stage. Before bringing a civil action for statutory penalties under PAGA, an employee must comply with Lab. Code § 2699.3. (*Arias v. Sup. Ct.* (2009) 46 Cal.4th 969, 981.) Lab. Code § 2699.3(a)(1)(A) provides that an aggrieved employee or representative shall give written notice by online filing with the LWDA and by certified mail to the employer of the specific provisions of this code alleged to have been violated, including the facts and theories to support the alleged violation. (Lab. Code § 2699.3(a)(1)(A).) The prelitigation notice requires more than bare allegations of Labor Code violations. (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 836.) It must provide sufficient information to allow the LWDA “to intelligently assess the seriousness of the alleged violations’ or give the employer enough information ‘to determine what policies or practices are being complained of so as to know whether to fold or fight.’” (*Id.*, at p. 837.) This allows the LWDA the opportunity to “act first on more ‘serious’ violations such as wage and hour violations and give[s] employers an opportunity to cure less serious violations.” (*Santos v. El Guapos Tacos, LLC* (2021) 72 Cal.App.5th 363, 369.) It also allows “the employer to submit a response to [the LWDA] [citation], again thereby promoting an informed agency decision as to whether to allocate resources toward an investigation.” (*Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 545-546.) As attached to counsel’s declaration, the LWDA letter states sufficient facts to place Wal-Mart on notice of the complaint’s allegations. (Cascino Dec., Exhibit 2.) This is sufficient for pleading purposes.

Eighteenth Cause of Action – Wages at Separation

Wal-Mart challenges the eighteenth cause of action with support via citation to an unreported federal case and CACI. Neither is proper. The complaint alleges that Plaintiff was entitled to unpaid wages at the time employment was terminated and that Wal-Mart failed to promptly compensate Plaintiff for same. (Complaint, ¶¶ 196.) This is sufficient for pleading purposes.